

Court No. - 3

Case :- WRIT - C No. - 32705 of 2021

Petitioner :- M/S Ganesh Laxmi Rice

Respondent :- U P Electricity Regulatory Commission And Another

Counsel for Petitioner :- Arun Mishra

Counsel for Respondent :- Narendra Kumar Tiwari, Ajay Singh

Hon'ble Surya Prakash Kesarwani, J.

Hon'ble Brij Raj Singh, J.

Heard Sri Arun Mishra, learned counsel for petitioner and Sri Ajay Singh, learned counsel for respondent No. 1 through video conferencing.

This writ petition has been filed praying for the following relief :

*"(i) Issue a writ, order or direction in the nature of mandamus commanding respondent No. 1 to decide the petition filed before it (**Annexure No.7**) within a fixed time frame for prosecution U/s **142, 146, 147 of Electricity Act, 2003** against respondent No. 2 for deliberately flouting the mandates to meet standard specified in **Electricity Act, 2003 & U.P. Electricity Supply Code, 2005** while issuing the Recovery Certificate of Rs.53,38,064/- without authority.*

(ii) issue any suitable writ order or direction which this Hon'ble Court may deem fit and proper under the circumstance of the case."

Learned counsel for respondent No. 1 states that the petition filed by the petitioner before the respondent No. 1 annexed with the writ petition as Annexure-7, shall be decided by the respondent No. 1 within 8 weeks.

Learned counsel for the petitioner has no objection to the aforesaid submission.

In view of the aforesaid and without expressing any opinion on merits of the case of the petitioner with the consent of the parties, this writ petition is **disposed of**, directing the respondent No. 1 to decide the aforesaid petition of the petitioner (stated to have been submitted on 13.9.2021 through e-mail) in accordance with law expeditiously, preferably within 8 weeks from the date of submission of a copy of this order along with the copy of petition, after affording reasonable opportunity of hearing to all the parties concerned including the petitioner.

It is made clear, that we have not expressed any opinion on merits of the case of the petitioner.

Order Date :- 3.1.2022

Md Faisal